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Case Number: 25AVCV01649 Hearing Date: July 14, 2026 Dept: A14

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES – NORTH DISTRICT

JORGE BARAJAS, an individual,

Plaintiff,

v.

FCA US, LLC, a Delaware Limited Liability Company, and DOES 1 through 20, inclusive,

Defendants.

Case Number 25AVCV01649

[TENTATIVE]

STATEMENT OF DECISION

Date of Hearing: July 14, 2026

Dept. A-14

Judge William H. Forman

I. Background

This action arises from FCA US, LLC's (Defendant) alleged breach of the Song-Beverly Consumer Warranty Act. Plaintiff Jorge Barajas (Plaintiff) demurs to Defendant's amended answer.

On December 11, 2025, Plaintiff filed a complaint against Defendant, asserting three causes of action for (1) breach of express warranty under the Song-Beverly Consumer Warranty Act (Song-Beverly Act), (2) breach of implied warranty under the Song-Beverly Act, and (3) violation of the Song-Beverly Act Section 1793.2(b).

Specifically, Plaintiff alleges that on June 22, 2024, Plaintiff purchased a new 2024 Ram 2500 (Vehicle), receiving written warranties and other express and implied warranties. (Compl., ¶¶ 6-7.) Plaintiff claims the Vehicle was delivered with serious defects and nonconformities to warranty including, but not limited to, defects related to the electrical system. (Compl., ¶ 9.) Plaintiff further states that he has delivered the Vehicle to Defendant's authorized service and repair facilities, agents, and dealers on numerous occasions, but that Defendant or its representatives failed to conform the Vehicle to warranty. (Compl., ¶¶ 16, 18.)

On January 15, 2026, Defendant filed its answer to the complaint.

On January 27, 2026, Plaintiff filed a declaration of demurring or moving party in support of automatic extension.

On February 25, 2026, Defendant filed its amended answer to the complaint, asserting thirteen affirmative defenses for (1) failure to state a cause of action, (2) laches, (3) mitigation of damages, (4) arbitration agreement, (5) statute of limitation, (6) state-of-the-art, (7) failure to provide notice of breach, (8) duration of implied warranty, (9) unreasonable or unauthorized use of vehicle, (10) negligence of others, (11) lack of maintenance and other exclusions, (12) modification of property, and (13) no timely revocation of acceptance.

On March 10, 2026, Plaintiff filed a demurrer to the amended answer.

Plaintiff's demurrer is unopposed.

II. Preliminary Procedural Issues

Timeliness of Plaintiff's Demurrer – A party has 10 days after service of the answer to demur. (Code Civ. Proc., § 430.40, subd. (b).) However, “[i]f the parties are not able to meet and confer at least 5 days before the date the responsive pleading is due, the demurring party shall be granted an automatic 30-day extension of time within which to file a responsive pleading, by filing and serving, on or before the date on which a demurrer would be due, a declaration stating under penalty of perjury that a good faith attempt to meet and confer was made and explaining the reasons why the parties could not meet and confer. The 30-day extension shall commence from the date the responsive pleading was previously due, and the demurring party shall not be subject to default during the period of the extension.” (Code Civ. Proc., §430.41, subd. (a)(2).)

Plaintiff's counsel asserts that upon receipt of Defendant's first answer on January 15, 2026, he attempted to meet and confer at least five days before filing a demurrer. (Souto Decl., ¶¶ 2-3, Ex. A, B.) On January 23, 2026, the parties met and conferred, and Defense counsel agreed to Plaintiff's filing a declaration of demurring party in support of an automatic 30-day extension of time to file the demurrer to the answer to provide Defendant time to file an amended answer. (Souto Decl., ¶ 4, Ex. C, D.) A demurrer to the original answer filed by Defendant was due on January 27, 2026. The extension made this demurrer due on February 26, 2026.

Defendant filed and served its amended answer on February 25, 2026. Plaintiff's demurrer to the amended answer was due on or before Monday, March 9, 2026. Plaintiff demurred to the amended answer on March 10, 2026. The extension for filing the demurrer as to the first answer filed by Defendant does not grant Plaintiff an additional day to file the present demurrer to the amended complaint. Accordingly, Plaintiff's demurrer is untimely.

However, this demurrer is unopposed. In the absence of any prejudice to Defendant, and in the interests of adjudicating the issue, the Court exercises its discretion to rule on the merits.

Meet and Confer – Before filing a demurrer, the demurring party is required to meet and confer at least five days before the date the responsive pleading is due, in person, by telephone, or by video conference, with the party who filed the pleading demurred to for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer. (Code Civ. Proc., § 430.41, subd. (a).) The demurring party shall file and serve with the demurrer a declaration stating the means by which the parties met and conferred and that the parties did not reach an agreement to resolve the issues raised, or that the party who filed the pleading demurred to failed to respond or otherwise failed to meet and confer in good faith. (Ibid.)

Plaintiff's counsel Astrid Souto declares that on February 27, 2026, she sent an email to Defense counsel detailing the grounds for Plaintiff's demurrer, and on March 6, 2026, the parties telephonically met and conferred regarding Plaintiff's demurrer to the amended answer. (Souto Decl., ¶¶ 7-8.) The Court finds that the meet and confer was procedurally untimely as it was not held at least five days before the filing of the present demurrer.

However, a determination that the meet and confer process was not sufficient is not grounds to overrule a demurrer. (Code Civ. Proc., § 430.41, subd. (a)(4).) Accordingly, the Court will consider the Demurrer on the merits.

III. Legal Standard

Standard for Demurrer to Answer – Pursuant to California Code of Civil Procedure section 430.20, the party against whom an answer has been filed may object to the answer by demurrer.

When considering a demurrer to an answer, "the defect in question need not appear on the face of the answer. The determination of the sufficiency of the answer requires an examination of the complaint because its adequacy is with reference to the complaint it purports to answer... [T]he demurrer to the answer admits all issuable facts pleaded therein and eliminates all allegations of the complaint denied by the answer... [E]ach so-called defense must be considered separately without regard to any other defense." (South Shore Land Co. v. Petersen (1964) 226 Cal.App.2d 725, 733-34.)

A demurrer to an answer may be brought on one of three grounds: (1) the answer does not include facts sufficient to constitute a defense; (2) uncertainty; and (3) the facts, as pleaded, are insufficient to determine whether an alleged contract in the answer is written or oral. (Code Civ. Proc., § 430.20.)

"The answer to a complaint shall contain: (1) [t]he general or specific denial of the material allegations of the complaint controverted by the defendant ... [and] (2) [a] statement of any new matter constituting a defense." (Code Civ. Proc., 431.30, subd. (b).)

Defenses should be relevant to a plaintiff's legal claims and averred carefully, and with as much detail as the facts constituting the corresponding causes of action in the complaint. (FPI Development, Inc. v. Nakashima (1991) 231 Cal.App.3d 367, 384.) Defenses should not be proffered in the form of "terse legal conclusions." (Ibid.) "The defenses shall be separately stated, and the several defenses shall refer to the causes of action which they are intended to answer, in a manner by which they may be intelligibly distinguished." (Code Civ. Proc., § 431.30, subd. (g).)

"The phrase 'new matter' refers to something relied on by a defendant which is not put in issue by the plaintiff." (State Farm Mut. Auto. Ins. Co. v. Superior Court (1991) 228 Cal.App.3d 721, 725.) "A plea controverting the original cause of action and tendering no new issue is a mere traverse and cannot be properly described as a plea setting up new matter." (Rancho Santa Margarita v. Vail (1938) 11 Cal.2d 501, 543.)

"However, [n]o error or defect in a pleading is to be regarded unless it affects substantial rights The primary function of a pleading is to give the other party notice so that it may prepare its case ..., and a defect in a pleading that otherwise properly notifies a party cannot be said to affect substantial rights. (Harris v. City of Santa Monica (2013) 56 Cal.4th 203, 240 [internal citations omitted].)

"[A]bsent a showing of prejudice to the adverse party, the rule of great liberality in allowing amendment of pleadings will prevail." (Board of Trustees v. Superior Court (2007) 149 Cal.App.4th 1154, 1163.) Thus, where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.)

IV. Discussion

Application – Plaintiff demurs to Defendant's amended answer on as to the following affirmative defenses and on the following grounds: (1) the second, third, and sixth through thirteenth affirmative defenses because they fail to state facts sufficient to constitute a defense under California Code of Civil Procedure sections 430.20, subdivision (a) and California Code of Civil Procedure section 431.30, subdivision (b), or are uncertain under California Code of Civil Procedure section 430.20, subdivision (b); (2) the fifth affirmative defense for being in violation of California Code of Civil Procedure section 458 or is otherwise barred; and (3) the fourth affirmative defense as it is not a legally cognizable affirmative defense. (Demurrer, p. 2, ¶¶ 1-3.)

a. Failure to State Facts Sufficient to Constitute a Defense as to Affirmative Defenses Nos. Two, Three, and Six Through Thirteen

Plaintiff demurs to Defendant's the second, third, and sixth through thirteenth affirmative defenses because they fail to state facts sufficient to constitute a defense under California Code of Civil Procedure sections 430.20, subdivision (a) and California Code of Civil Procedure section 431.30, subdivision (b), or are uncertain under California Code of Civil Procedure section 430.20, subdivision (b). (Demurrer, p. 2, ¶ 1.)

Affirmative defenses are a "new matter" where they introduce new issues not raised in the complaint. (Quantification Settlement Agreement Cases (2011) 201 Cal.App.4th 758, 812.) Defenses or objections based on "new matter" "must be specifically pleaded." (Advantec Group, Inc. v. Edwin's Plumbing Co., Inc. (2007) 153 Cal.App.4th 621, 628.) "The phrase 'new matter' refers to something relied on by a defendant which is not put in issue by the plaintiff." (Walsh v. West Valley Mission Community College District (1998) 66 Cal.App.4th 1532, 1546.) Where the answer sets forth facts showing some essential allegation of the complaint is not true, such facts are not new matters but are denials. (Ibid.) "[A]ffirmative defenses cannot be pled as mere legal conclusions but must instead be alleged with as much factual detail as the allegations of a complaint." (Quantification, supra, 201 Cal.App.4th at p. 813.)

Defendant fails to cite to the Complaint in its denials or provide requisite facts to support its 'new matter' affirmative defenses. Without specific factual allegations to support Defendant's affirmative defenses, Plaintiff is not on notice as to what specific act or omission gave rise to the affirmative defense. Moreover, without specific factual allegations, Defendant's defenses consist solely of legal conclusions. (See Bagatti v. Department of Rehabilitation (2002) 97 Cal.App.4th 344, 366, fn. 8 ["These conclusionary allegations, which allege no specific acts, are insufficient to survive demurrer."].)

As Defendant failed to plead factual allegations to support its second, third, and sixth through thirteenth affirmative defenses, Plaintiff's demurrer to these affirmative defenses is sustained with leave to amend.

b. Violation of California Code of Civil Procedure Section 458 or Otherwise Barred as to Affirmative Defense No. Five

Defendant demurs to the fifth affirmative defense for being in violation of California Code of Civil Procedure section 458 or is otherwise barred. (Demurrer, p. 2, ¶ 2.)

The fifth affirmative defense states Plaintiff's claims are barred by the applicable statutes of limitation, specifically the limitations periods outlined in California Code of Civil Procedure sections 335.1, 337, 338, 338.1, and 340, Civil Code sections 1783 and 1791.1, and Commercial Code section 2725. (Amended Answer, p. 3, ¶ 5.)

California Code of Civil Procedure section 458 provides that a state of limitation affirmative defense may be pled without any accompanying facts. Specifically, it states: "In pleading the Statute of Limitations it is not necessary to state the facts showing the defense, but it may be stated generally that the cause of action is barred by the provisions of Section ____ (giving the number of the section and subdivision thereof, if it is so divided, relied upon) of the Code of Civil Procedure." (Code Civ. Proc., § 458.)

When alleging a statute of limitations defense, a defendant must specify, where applicable, each of the statutes' applicable subdivisions. (See *Davenport v. Stratton* (1944) 24 Cal.2d 232, 246-247 ["answer did not refer to the proper subdivision. [...] the provisions of section 458 of the Code of Civil Procedure must be strictly applied, and that the attempted plea of the statute of limitations by defendant was insufficient to raise that issue in the trial court"].)

Here, the subdivisions for California Code of Civil Procedure sections 337, 338, and 340, Civil Code section 1791.1, and Commercial Code section 2725 are not identified as required. Thus, Defendant's identification of said statutes without subdivisions in its amended answer to the complaint is insufficient to raise the statutes as a defense. (See *Davenport*, supra, 24 Cal.2d at pp. 246-247.)

Accordingly, the demurrer to the fifth affirmative defense is SUSTAINED with leave to amend.

c. Not a Legally Cognizable Affirmative Defense as to Affirmative Defense No. Four

Plaintiff demurs to the fourth affirmative defense on the grounds that it is not a legally cognizable affirmative defense. (Demurrer, p. 2, ¶ 3.)

The fourth affirmative defense states that Defendant is informed and believes, and on that basis alleges, that this dispute is subject to an arbitration agreement with Plaintiff such that this matter is not properly brought before the Court. (Amended Answer, p. 3, ¶ 5.)

An agreement to arbitrate is an affirmative defense. (*Ross v. Blanchard* (1967) 251 Cal.App.2d 739, 742-43.) The Court acknowledges that this affirmative defense is similarly lacking in factual specificity. However, Plaintiff does not demur on the grounds that the fourth affirmative defense fails to state sufficient facts, that it is uncertain, or that the facts, as pleaded, are insufficient to determine whether an alleged contract in the answer is written or oral. (Code Civ. Proc., § 430.20.)

Accordingly, the demurrer to the fourth affirmative defense is OVERRULED.

V. Conclusion

Plaintiff Jorge Barajas's Demurrer to Defendant FCA US, LLC's Amended Answer is SUSTAINED with leave to amend as to the second, third, fifth, and sixth through thirteenth affirmative defenses.

Plaintiff Jorge Barajas's Demurrer to Defendant FCA US, LLC's Amended Answer is OVERRULED as to the fourth affirmative defense.

Defendant to file an amended answer within 30 days.